

Federal Emergency Management Agency
Directives Management System



FEMA

FEDERAL PREPAREDNESS CIRCULAR

	Date	Office
FPC 65	June 15, 2004	Office of National Security Coordination

TO: HEADS OF FEDERAL DEPARTMENTS AND AGENCIES

SUBJECT: **FEDERAL EXECUTIVE BRANCH CONTINUITY OF OPERATIONS (COOP)**

1. **PURPOSE:** This Federal Preparedness Circular (FPC) provides guidance to Federal Executive Branch departments and agencies for use in developing contingency plans and programs for continuity of operations (COOP). COOP planning facilitates the performance of department/agency essential functions during any emergency or situation that may disrupt normal operations.
2. **APPLICABILITY AND SCOPE:** The provisions of this FPC are applicable to all Federal Executive Branch departments, agencies, and independent organizations, hereinafter referred to as "agencies." The COOP elements outlined herein are for use at all levels of Federal Executive Branch organizations, regardless of location.
3. **SUPERSESION:** The provisions of this FPC supersede:
 - a. Federal Preparedness Circular 65, Federal Executive Branch Continuity of Operations, dated July 26, 1999.
 - b. Federal Preparedness Circular 66, Test, Training and Exercise Program for Continuity of Operations, dated April 30, 2001.
 - c. Federal Preparedness Circular 67, Acquisition of Alternate Facilities For Continuity of Operations, dated April 30, 2001.
4. **AUTHORITIES:**
 - a. The National Security Act of 1947, dated July 26, 1947, as amended.
 - b. The Homeland Security Act of 2002 (Public Law 107-296), dated November 25, 2002.
 - c. Executive Order 12148, Federal Emergency Management, dated July 20, 1979, as amended.
 - d. Executive Order 12472, Assignment of National Security and Emergency Preparedness Telecommunications Functions, dated April 3, 1984.
 - e. Executive Order 12656, Assignment of Emergency Preparedness Responsibilities dated November 18, 1988, as amended.

- f. Executive Order 13286, Establishing Office of Homeland Security, dated February 28, 2003.
- g. Presidential Decision Directive 67, Enduring Constitutional Government and Continuity of Government Operations, dated October 21, 1998.

5. REFERENCES:

- a. 41 Code of Federal Regulations 101.20.103-4, Occupant Emergency Program, revised as of July 1, 2000
- b. 36 Code of Federal Regulations, Part 1236, Management of Vital Records, revised as of July 1, 2000.
- c. Presidential Decision Directive 62, Protection Against Unconventional Threats to the Homeland and Americans Overseas, dated May 22, 1998.
- d. Homeland Security Presidential Directive 3, Homeland Security Advisory System, dated March 11, 2002.
- e. Homeland Security Presidential Directive 5, Management of Domestic Incidents, dated February 28, 2003.
- f. Homeland Security Presidential Directive 7, Critical Infrastructure Identification, Prioritization, and Protection, dated December 17, 2003.
- g. Homeland Security Presidential Directive 8, National Preparedness, dated December 17, 2003.
- h. Federal Preparedness Circular 60, Continuity of the Executive Branch of the Federal Government at the Headquarters Level During National Security Emergencies, dated November 20, 1990.

6. POLICY: It is the policy of the United States to have in place a comprehensive and effective program to ensure continuity of essential Federal functions under all circumstances. To support this policy the Federal Executive Branch has implemented the Continuity of Operations (COOP) Program. COOP is defined as the activities of individual departments and agencies and their sub-components to ensure that their essential functions are performed. This includes plans and procedures that delineate essential functions; specify succession to office and the emergency delegation of authority; provide for the safekeeping of vital records and databases; identify alternate operating facilities; provide for interoperable communications; and validate the capability through tests, training, and exercises. All Federal agencies, regardless of location, shall have in place a viable COOP capability to ensure continued performance of essential functions from alternate operating sites during any emergency or situation that may disrupt normal operations.

7. BACKGROUND: COOP planning is simply a “good business practice”—part of the fundamental mission of agencies as responsible and reliable public institutions. Today’s changing threat environment and the potential for no-notice emergencies, including localized acts of nature, accidents, technological emergencies, and military or terrorist attack-related incidents, have increased the need for COOP capabilities and plans that enable agencies to continue their essential functions across a broad spectrum of emergencies. This, coupled with the potential for terrorist use of weapons of mass destruction, has emphasized the importance of COOP programs that ensure continuity of essential government functions across the Federal Executive Branch.

To provide oversight and coordination of this effort, Presidential Decision Directive (PDD) 67 established the Federal Emergency Management Agency (FEMA) as the lead agency for Federal Executive Branch COOP. This authority was transferred to the Department of Homeland Security on March 1, 2003, and then delegated to the Emergency Preparedness and Response Directorate (FEMA). FEMA's Office of National Security Coordination has been designated as DHS's lead agent for the Federal Executive Branch COOP program. Included in this responsibility is the requirement to formulate guidance and establish common standards for agencies to use in developing viable, executable COOP plans; facilitate interagency coordination as appropriate; and oversee and assess the status of COOP capabilities of Federal Executive Branch agencies. Additionally, each Federal Executive Branch agency is responsible for appointing a senior Federal government executive as an emergency coordinator to serve as program manager and agency point of contact for coordinating agency COOP activities, to include planning, programming, and budgeting for a viable and executable COOP program that conforms to this FPC.

8. **OBJECTIVES:** COOP planning is an effort to ensure that the capability exists to continue essential agency functions across a wide range of all hazard emergencies. The objectives of a viable COOP plan include:
- a. Ensuring the performance of an agency's essential functions/operations during a COOP event;
 - b. Reducing loss of life, minimizing damage and losses;
 - c. Executing as required, successful succession to office with accompanying authorities in the event a disruption renders agency leadership unable, unavailable, or incapable of assuming and performing their authorities and responsibilities of office;
 - d. Reducing or mitigating disruptions to operations;
 - e. Ensuring that agencies have alternate facilities from which to continue to perform their essential functions during a COOP event;
 - f. Protecting essential facilities, equipment, vital records, and other assets;
 - g. Achieving a timely and orderly recovery from an emergency and reconstitution of normal operations that allows resumption of essential functions for both internal and external clients; and
 - h. Ensuring and validating COOP readiness through a dynamic, integrated test, training, and exercise program to support the implementation of COOP plans.
9. **PLANNING REQUIREMENTS FOR VIABLE COOP CAPABILITY:** Viable department and agency COOP capability consists, at a minimum, of the following elements:
- a. Must be capable of implementation both with and without warning;
 - b. Must be operational within a minimal acceptable period of disruption for essential functions, but in all cases within 12 hours of COOP activation;
 - c. Must be capable of maintaining sustained operations until normal business activities can be reconstituted, which may be up to 30 days;
 - d. Must include regularly scheduled testing, training, and exercising of agency personnel, equipment, systems, processes, and procedures used to support the agency during a COOP event;

- e. Must provide for a regular risk analysis of current alternate operating facility(ies);
- f. Must locate alternate operating facilities in areas where the ability to initiate, maintain, and terminate continuity operations is maximized;
- g. Should consider locating alternate operating facilities in areas where power, telecommunications, and internet grids would be distinct from those of the primary;
- h. Should take maximum advantage of existing agency field infrastructures and give consideration to other options, such as telecommuting locations, work-at-home, virtual offices, and joint or shared facilities;
- i. Must consider the distance of alternate operating facilities from the primary facility and from the threat of any other facilities/locations (e.g., nuclear power plants or areas subject to frequent natural disasters); and
- j. Must include the development, maintenance, and annual review of agency COOP capabilities using a multi-year strategy and program management plan. The multi-year strategy and program management plan will outline the process the agency will follow to:
 - (1) Designate and review essential functions and resources,
 - (2) Define short and long-term COOP goals and objectives,
 - (3) Forecast COOP budgetary requirements,
 - (4) Identify COOP program issues, concerns, potential obstacles, and the strategy for addressing these, as appropriate.
 - (5) Establish COOP planning, training, and exercise activities and milestones for these activities.

10. ELEMENTS OF A VIABLE COOP CAPABILITY: At a minimum, all agency COOP plans and programs shall include the following elements:

- a. **PLANS AND PROCEDURES.** A COOP plan shall be developed and documented that, when implemented, will provide for continued performance of an organization's essential functions under all circumstances. At a minimum, the plan must:
 - (1) Delineate essential functions and activities, agency interdependencies, and the resources needed to perform them;
 - (2) Establish orders of succession to key agency positions and establish and maintain current roster(s) of fully equipped and trained COOP personnel with the authority to perform essential functions, to include a devolution of control plan;
 - (3) Provide for the identification and preparation of alternate operating facilities for continuity operations;
 - (4) Outline a decision process for determining appropriate actions in implementing COOP plans and procedures;
 - (5) Provide procedures for the notification and relocation of COOP personnel to one or more alternate operating facilities;

- (6) Provide procedures for the orientation of COOP personnel and for conducting operations and administration at alternate operating facilities;
- (7) Provide for operational capability at the COOP site as soon as possible with minimal disruption to operations, but in all cases within 12 hours of activation;
- (8) Establish reliable processes and procedures to acquire resources necessary to continue essential functions and sustain operations until normal business activities can be reconstituted, which could be up to 30 days;
- (9) Provide for the ability to coordinate activities with non-COOP personnel; and
- (10) Provide for reconstitution of agency capabilities, and transition from continuity operations to normal operations

See Annex A- Plans and Procedures.

- b. **ESSENTIAL FUNCTIONS.** The identification and prioritization of essential functions is a prerequisite for COOP because it establishes the planning parameters that drive the agency's efforts in all other planning and preparedness areas. Essential functions are those functions that enable agencies to provide vital services, exercise civil authority, maintain the safety and well being of the general populace, and sustain the industrial/economic base in an emergency.

Agencies should carefully review all of their organization's missions and functions before determining those that are essential. Improper identification of essential functions can have a negative impact on the entire COOP plan, because other aspects of the COOP plan are designed around supporting these functions. If an agency fails to identify a function as essential, it will not make the necessary arrangements to perform that function. If it identifies too many functions as essential, it risks being unable to adequately address all of them. In either case, the agency increases the risk that it will not be able to perform its essential functions in a COOP situation.

Planning related to essential functions must also include identification of partners integral to program delivery, testing data exchanges between partners, developing complementary COOP plans, sharing key information on readiness with other partners and the public, and taking steps to ensure that the agency's essential functions will continue in a COOP situation. Careful consideration must be given to department and agency interdependencies to ensure the continued delivery and performance of essential functions across the full spectrum of threats and "All Hazards" emergencies.

See Annex B – Essential Functions.

- c. **DELEGATIONS OF AUTHORITY.** To ensure rapid response to any emergency situation requiring COOP plan implementation, agencies should pre-delegate authorities for making policy determinations and other decisions at headquarters, field levels, and other organizational locations, as appropriate. Clearly established delegations of authority are vital to ensuring all agency personnel know who has authority to make key decisions in a COOP situation. Generally, pre-determined

delegations of authority will take effect when normal channels of direction and control are disrupted and will terminate when these channels are restored.

See Annex C – Delegations of Authority

- d. **ORDERS OF SUCCESSION.** Agencies are responsible for establishing, promulgating, and maintaining orders of succession to key positions. Such orders of succession are an essential part of an agency's COOP plan to ensure agency personnel know who has authority and responsibility if agency leadership is incapacitated or unavailable in a COOP situation. Orders should be of sufficient depth to ensure the agency's ability to manage and direct its essential functions and operations while remaining a viable part of the Federal government throughout any emergency.

See Annex D – Orders of Succession

- e. **ALTERNATE OPERATING FACILITY(IES).** All agencies must identify and prepare alternate operating facilities as part of their COOP plans, and prepare their personnel for the possibility of unannounced relocation of essential functions and/or COOP personnel to these facilities. As a minimum, alternate operating facilities must provide:

- (1) Sufficient space and equipment to sustain the relocating agency;
- (2) Capability to perform essential functions as soon as possible with minimal disruption of operations, but in all cases within 12 hours of activation and until normal business activities can be reconstituted, which could be up to 30 days under various threat conditions, including threats involving weapons of mass destruction;
- (3) Reliable logistical support, services, and infrastructure systems;
- (4) Consideration for the health, safety, security, and emotional well being of relocated employees;
- (5) Interoperable communications, including means for secure communications, with all identified essential internal and external organizations, customers, and the public; and
- (6) Computer equipment, software, and other automated data processing equipment necessary to carry out essential functions.

See Annex E – Alternate Operating Facilities.

- f. **INTEROPERABLE COMMUNICATIONS.** The ability of an agency to execute its essential functions at its alternate operating facilities is dependent upon the identification, availability, and redundancy of critical communications and information technology (IT) systems to support connectivity between key government leadership, internal elements, other agencies, critical customers, and the public (e.g. secure and non-secure phone, video conferencing, fax, and messaging capabilities,

etc.) during crisis, disasters, or wartime conditions. All necessary and required communications and IT capabilities must be operational as soon as possible following COOP activation, but in all cases within twelve hours of notification. Departments and agencies listed in the COOP Communications Plan (CCP) must test the communications capabilities at their alternate operating facilities quarterly. All other organizations should also validate their internal and external communications capabilities at their alternate operating facilities quarterly.

See Annex F – Interoperable Communications.

- g. **VITAL RECORDS AND DATABASES.** The identification, protection, and ready availability of electronic and hardcopy documents, references, records, and information systems needed to support essential functions during a COOP situation is another critical element of a viable COOP plan. Agency personnel must have access to and be able to use these records and systems in conducting their essential functions. They must also have procedures for protecting and updating them. As a minimum, categories of these types of records are:

- (1) Emergency Operating Records. These include records and databases essential to the continued functioning or reconstitution of an agency during and after a COOP event. Examples are emergency plans and directives, orders of succession, delegations of authority, staffing assignments, and related records of a policy or procedural nature that provide agency COOP personnel with the guidance and information resources necessary for conducting operations during a COOP situation, and for resuming normal operations at its conclusion.
- (2) Legal and Financial Records. These include vital records critical to carrying out an agency's essential legal and financial functions and protecting the legal and financial rights of individuals directly affected by its activities. Included are records having such value that their loss would significantly impair the execution of essential agency functions, to the detriment of the legal or financial rights and/or entitlements of the agency or of the affected individual(s). Examples of this category of vital records are accounts receivable; contracting and acquisition files; official personnel records; Social Security, payroll, retirement, and insurance records; and property management and inventory records.

The COOP Plan must account for the identification and protection of the vital records, systems, and data management software and equipment, to include classified or other sensitive data, as applicable, necessary to perform essential functions, and to reconstitute normal agency operations after the emergency. To the extent possible, agencies should pre-position and update on a regular basis duplicate records or back-up electronic files.

See Annex G – Vital Records and Databases.

- h. HUMAN CAPITAL. COOP human capital planning and preparedness encompasses the following areas:

- (1) Agency planning and readiness;
- (2) Designation of emergency employees and other special categories of employees;
- (3) Dismissal or closure procedures;
- (4) OPM and media announcements on government operating status;
- (5) Status of non-emergency employees and non-special categories of employees;
- (6) Sample agency guidelines for communicating to employees;
- (7) Methods of employee communications,
- (8) Employee awareness of changes in building operations,
- (9) Pay flexibilities,
- (10) Staffing flexibilities,
- (11) Benefit issues,
- (12) Employee roles and responsibilities.

See Annex H – Human Capital.

- i. TEST, TRAINING AND EXERCISES. Testing, training, and exercising of COOP capabilities are essential to assessing, demonstrating and improving the ability of agencies to execute their COOP plans and programs. Tests and exercises serve to assess, validate, or identify for a subsequent corrective action program, specific aspects of COOP plans, policies, procedures, systems, and facilities used in response to an emergency situation. Training familiarizes COOP personnel with the procedures and tasks they must perform in executing COOP plans. All agencies must plan, conduct, and document periodic tests, training, and exercises to demonstrate the plan's viability and identify deficiencies. Deficiencies and actions taken to correct them must be documented.

Specific objectives of a COOP TT&E program are to:

- (1) Assess and validate COOP plans, policies, and procedures;
- (2) Ensure that agency personnel are familiar with alert, notification, and deployment procedures;

- (3) Test alert, notification and deployment procedures and systems at least annually;
- (4) Ensure COOP personnel are sufficiently trained to carry out agency essential functions in a COOP situation;
- (5) Conduct individual and team training of agency COOP personnel to ensure currency of knowledge and integration of skills necessary to implement COOP plans and carry out essential functions;
- (6) Exercise procedures by deploying designated personnel and equipment to the alternate operating facilities to ensure an agency's ability to perform essential functions and operations during a COOP situation;
- (7) Ensure that backup data and records required to support essential functions at the alternate operating facilities are sufficient, complete, and current;
- (8) Test and validate equipment to ensure both internal and external interoperability;
- (9) Ensure agency personnel understand the procedures to phase out COOP operations and transition to normal activities (reconstitution) when appropriate;
- (10) Conduct refresher orientation for COOP personnel;
- (11) Document completed COOP training and identify training requirements; and
- (12) Develop a Multi-Year Test, Training, and Exercise (TT&E) Plan that addresses COOP TT&E requirements, resources to support these activities, and a TT&E planning calendar.

See Annex I – Test, Training, and Exercises.

- j. **DEVOLUTION OF CONTROL AND DIRECTION.** Devolution planning supports overall COOP planning and addresses the full spectrum of threats and all-hazards emergencies that may render an agency's leadership and staff unavailable to or incapable of supporting the execution of its essential functions from either its primary or alternate location(s). The devolution option of COOP shall be developed to address how an agency will identify and conduct its essential functions during increased threat situations or in the aftermath of a catastrophic emergency.

See Annex J – Devolution of Control and Direction.

- k. **RECONSTITUTION.** Extensive coordination is necessary to procure a new operating site once an agency suffers a facility loss or in the event that collateral damage from a disaster renders the structure unsafe for reoccupation. Reconstitution embodies the ability of an agency to recover from a catastrophic event and consolidate the necessary resources that allow it to return to a fully functional entity of the Federal Government.

See Annex K – Reconstitution.

11. COOP IMPLEMENTATION: A COOP plan involves the deliberate and pre-planned movement of selected key principals and supporting staff to an alternate operating facility. Relocation may be required to accommodate a variety of emergency scenarios. Examples include scenarios in which:

- a. An agency headquarters is unavailable and operations can shift to a regional or field location;
- b. A single agency facility is temporarily unavailable and the agency can share one of its own facilities or that of another agency; or
- c. Many, if not all, agencies must evacuate the immediate area.

While these scenarios involve the unavailability of a facility, the distinction must be made between a situation requiring evacuation only and one dictating the need to implement COOP plans. As an example, a sudden emergency, such as a fire or hazardous materials incident, may require the evacuation of an agency building with little or no advance notice, but for only a short duration. Alternatively, an emergency so severe that an agency facility is rendered unusable and likely will be for a period long enough to significantly impact normal operations, may require COOP plan implementation.

Agencies should develop an executive decision process that allows for a review of the emergency and determination of the best course of action for response and recovery. This will preclude premature or inappropriate activation of an agency COOP plan. The phasing for COOP activation and relocation, alternate operating facility operations, and reconstitution are as follows:

a. ACTIVATION AND RELOCATION (0-12 HOURS)

Activate plans, procedures, and schedules to transfer essential functions, personnel, records, and equipment to alternate operating facilities. Agency Headquarters POCs must notify the FEMA Operations Center (FOC), (540) 665-6100/1-800-634-7084, and other appropriate agencies of any COOP activation regardless of agency location and the time of execution or activation of call-down procedures. The FOC will relay notification information to the Homeland Security Operations Center (HSOC) and the Office of National Security Coordination (ONSC).

b. ALTERNATE OPERATING FACILITY OPERATIONS

Provide additional guidance to COOP personnel and all other employees. Notify the FOC and all other appropriate agencies immediately of the agency's alternate location, operational and communications status, and the anticipated duration of relocation, if known. Commence full execution of essential functions at the alternate operating facility(ies). The FOC will relay this information to the HSOC and the ONSC.

c. **RECONSTITUTION (TERMINATION AND RETURN TO NORMAL OPERATIONS)**

Inform all organizational personnel that the necessity to COOP no longer exists and provide instructions for resumption of normal operations. Supervise an orderly return to the normal operating facility, or movement to other temporary or permanent facility(ies). Report the status of relocation to the FOC and other agency points-of-contact, as applicable. The FOC will relay this information to the HSOC and the ONSC.

12. **RESPONSIBILITIES:** The following responsibilities must be clearly outlined in agency COOP plans and internal documents:

a. Each agency head is responsible for:

- (1) Establishing an agency COOP program;
- (2) Appointing a senior executive as the agency COOP program point-of-contact;
- (3) Developing a COOP Multi-Year Strategy and Program Management Plan that includes a program budget to support a viable COOP capability;
- (4) Developing, approving, and maintaining agency COOP plans and procedures for headquarters and all subordinate elements;
- (5) Conducting tests, training, and exercises of agency COOP plans at least annually, to include COOP personnel, and essential systems and equipment, to ensure timely and reliable implementation of COOP plans and procedures;
- (6) Participating in interagency COOP exercises to ensure effective interagency coordination and mutual support;
- (7) Notifying the FOC and other appropriate agencies upon any implementation of COOP plans;
- (8) Providing updates on COOP status to the FOC as designated or if the agency's COOP status changes; and
- (9) Coordinating intra-agency COOP efforts and initiatives with policies, plans, and activities in accordance with directives related to terrorism, Critical Infrastructure Protection, and all-hazards preparedness. Contingency planning efforts such as Disaster Recovery Plans, Information Assurance, National Response Plan, Business Continuity Plans etc., should be integrated into the agency's COOP plan.

b. FEMA is responsible for:

- (1) Serving as the Department of Homeland Security's designated Lead Agent for Federal Executive Branch COOP;

- (2) Coordinating and monitoring COOP activities of Federal Executive Branch agencies;
- (3) Issuing COOP guidance, in cooperation with the General Services Administration and the Office of Personnel Management, to promote understanding of, and compliance with, the requirements and objectives of governing directives;
- (4) Chairing the COOP Working Group (CWG), which serves as the principal interagency forum for discussion of COOP matters such as policy guidance, plans, and procedures, and for dissemination of information to agencies for developing and improving their individual COOP plans;
- (5) Conducting periodic assessments of Executive Branch COOP capabilities and reporting the results to the National Security Council and the Homeland Security Council.
- (6) Conducting a government-wide COOP exercise every other year as an assessment and validation tool of Federal COOP readiness;
- (7) Assisting as required, the Federal legislative and judicial branches with COOP planning and implementation; and
- (8) Providing oversight for the development of COOP training courses that are available to all agencies.

c. General Services Administration (GSA) is responsible for:

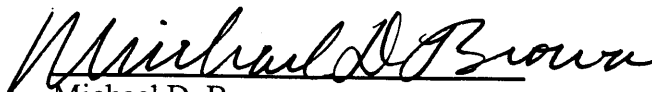
- (1) Developing and conducting a COOP training program available to all agencies; and
- (2) Maintaining a database of all alternate operating facilities.

d. Office of Personnel Management (OPM) is responsible for:

- (1) Maintaining and revising Human Capital management guidance for emergency situations.
- (2) Assisting the heads of other departments and agencies with personnel management and staffing during national security emergencies.

13. POINT OF CONTACT: Should you have any questions or need additional assistance with the information contained in this FPC, please contact the Director, Office of National Security Coordination, at 202.646.4145.

14. **DISTRIBUTION:** This FPC is distributed to the heads of Federal departments and agencies, senior policy officials, emergency planners, and other interested parties.

A handwritten signature in black ink, appearing to read "Michael D. Brown".

Michael D. Brown

Under Secretary

Emergency Preparedness and Response

ANNEX A – PLANS AND PROCEDURES
ANNEX B – ESSENTIAL FUNCTIONS
ANNEX C – DELEGATIONS OF AUTHORITY
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ANNEX A- PLANS AND PROCEDURES

A Continuity of Operations (COOP) plan shall be developed and documented by each Federal department and agency to minimize disruption of business operations and provide for continued performance of essential functions under all circumstances.

Comprehensive COOP plans should include appropriate provisions and lists developed in advance of COOP activation to ensure a viable COOP capability.

As a minimum, agencies must incorporate lists for the following elements of their COOP plans:

1. Essential functions and other critical activities;
2. Identification and preparation of alternate operating facilities for continuity operations;
3. Vital records, databases and systems and where/how they are stored;
4. Orders of succession for key organizational leadership positions;
5. Delegation of authorities;
6. Decision process for determining appropriate actions in implementing COOP plans and procedures;
7. Responsibilities of the individuals who have COOP roles (leadership, planners, COOP personnel);
8. Recommended content and maintenance of drive-away kits;
9. Interoperable communications systems and contact numbers; and
10. COOP personnel and other employee contact lists.

Additionally, agencies should develop action plans for each stage of COOP implementation. The following are the types of actions agencies must, as a minimum plan for:

1. ACTIVATION AND RELOCATION

- a. Decision matrix for COOP:
 - (1) With warning.
 - (2) Without warning during duty hours, and during non-duty hours.

- b. Notification of:
 - (1) Alternate facilities.
 - (2) Department and Agency (D/A) HQs are required to notify the FEMA Operations Center (FOC), (540) 665-6100/1-800-634-7084) of COOP activation and relocation. The FOC will relay this information to the Homeland Security Operations Center (HSOC) and the ONSC. Subordinate D/A organizations will notify their respective D/A HQs of COOP activation and relocation, which, in turn, will notify the FOC.)
 - (3) Other points of contact, as appropriate.
 - (4) Employees (COOP essential personnel and non-deployed personnel).
- c. Movement to alternate operating facility(ies); directions and maps of routes from primary location to alternate operating facilities.
- d. Movement of records, not pre-positioned, from the primary to the alternate operating facility(ies).
- e. Ordering of necessary equipment/supplies not already in place.

2. ALTERNATE OPERATING FACILITY OPERATIONS

- a. Reception and in processing of COOP personnel.
- b. Transition of responsibilities to the deployed COOP personnel.
- c. Guidance for non-deployed personnel.
- d. Identification of replacement personnel and augmentees, as necessary.
- e. Execution of all essential functions at the alternate operating facility(ies).
- f. Notification of the FOC and all other appropriate points of contact of the agency's alternate location, operational and communications status, and anticipated duration of relocation, if known. The FOC will notify agencies of any additional COOP reporting requirements.
- g. Redeployment plans to phase down alternate facility operations and return operations, personnel, records, and equipment to the primary operating facility, when appropriate.

3. RECONSTITUTION (TERMINATION AND RETURN TO NORMAL OPERATIONS)

- a. Informing all personnel, including non-deployed personnel, that the need to COOP no longer exists, and providing instructions for resumption of normal operations.
- b. An orderly return to the normal operating facility, or movement to other temporary or permanent facility(ies) using a phased approach if conditions necessitate; and the transition of responsibilities from deployed COOP personnel.
- c. Notification of the status of relocation to the FOC and other agency points of contact, as applicable.
- d. An after-action review of COOP operations and effectiveness of plans and procedures as soon as possible, identifying areas for correction, and developing a remedial action plan.

ANNEX B- ESSENTIAL FUNCTIONS

All agencies must identify and prioritize their essential functions as the basis for COOP planning. Essential functions are those functions that enable an organization to provide vital services, exercise civil authority, maintain the safety of the general public, and sustain the industrial/economic base during an emergency. The goal of this annex is to assist with the identification, prioritization, and resourcing of these essential functions. During preparations for Y2K, the Office of Management and Budget (OMB) identified Federal programs having high impact on the public. Lists of these programs are included as tables B-3 and B-4. These tables are not all-inclusive and may provide examples of potential essential functions for consideration and planning purposes:

In identifying essential functions, agencies must:

1. Determine which functions must be continued under all circumstances. When identifying essential functions, agencies must consider those functions that must continue with minimal disruption or cannot be interrupted for more than 12 hours, without compromising the organization's ability to perform its mission. Agencies must be capable of sustaining these essential functions until normal business activities can resume which may be up to 30 days. Agencies must also consider the following when identifying essential functions:
 - a. The function can be documented as an essential mission or responsibility explicitly assigned to the agency by law, or by order of the President. Consult Presidential Decision Directives, Executive Orders, Homeland Security and National Security Presidential Directives, and other Federal Executive Branch directives for the presence of compulsory essential functions.
 - b. The function has been determined by the agency head to be essential or is implicit in complying with a federal law or order issued by the President.
 - c. The function provides vital support to an essential function performed by another Federal Executive Branch department or agency. Such functions reflect interdependency between two or more agencies because they must act in concert in order to perform the function successfully. Many agency functions rely on the availability of resources or functions controlled by another organization, including other agencies, state and local governments, and private entities. (For example, the Department of the Treasury's Financial Management Service receives and makes payments for most federal agencies.)
2. Prioritize these functions based on the criticality and time sensitivity of the function (see Table B-1). To the extent possible, agencies should prioritize these functions against likely COOP triggers and scenarios. Note that the prioritization of essential functions might be situation dependent.
3. Establish staffing, resource requirements, and any other supporting activities needed to perform these functions within 12 hours, or less, of COOP activation and until normal business activities can resume which may be up to 30 days.

- a. Establish a roster of personnel, hereinafter referred to as “COOP personnel” or the “Emergency Relocation Group” (ERG), needed to perform these essential functions. COOP personnel must be fully equipped, properly trained, and possess the authority to perform essential functions.
 - (1) Based on an agency’s essential functions, determine the necessary knowledge, skills, and abilities required for COOP personnel.
 - (2) Determine any security clearance requirements for COOP personnel.
 - (3) Determine, from among the qualified personnel, those who are able to serve as COOP personnel. In doing so, the agency should consider extenuating circumstances such as medical conditions, family responsibilities, and any other circumstances that may prevent an individual from serving as COOP personnel.
 - (4) Select the appropriate mix of personnel to satisfy the knowledge, skills, abilities, and security clearance requirements required to perform essential functions. The agency should attempt to minimize the number of COOP personnel, but designation should ultimately be determined by what is needed to support the organization’s essential functions.
 - b. Identify equipment, including information technology and telecommunications (ITT) hardware needed to perform essential functions.
4. Identify mission critical data needed to perform essential functions.
 5. Identify consumable office supplies needed to perform essential functions.
 6. Include a statement that indicates all functions deemed not essential will be deferred.

Lists of resources required to perform essential functions must be reviewed annually and updated as necessary.

The following table can assist agencies in identifying and documenting their essential functions and supporting information.

Table B-1: Essential functions and supporting information.

Priority	Essential Function	Number of Personnel	Equipment and Systems	Vital Records and Databases	Supplies
1					
2					
3					
4					

The following table can assist agencies in identifying COOP personnel and their contact information.

Table B-2: COOP Personnel information

Name	Title	Contact Information
		Office Phone: Home Phone: Cell Phone: Pager: Email:
		Office Phone: Home Phone: Cell Phone: Pager: Email:
		Office Phone: Home Phone: Cell Phone: Pager: Email:

The following table prepared by the Office of Management and Budget (OMB), includes examples of functions that may assist in determining what is essential to an agency's overall mission and responsibilities. This listing is not all-inclusive. Each agency must review all of its functions to determine those functions that enable agencies to provide vital services, exercise civil authority, maintain the safety and well being of the general populace, and sustain the industrial/economic base in an emergency.

Table B-3: High Impact Programs and Responsible Agency

Agency	High-impact programs
Agriculture	Food safety inspection
	Child nutrition programs
	Food stamps
	Special supplemental nutrition program for women, infants, and children
Commerce	Patent and trademark processing
	Weather service
Education	Student aid
Energy	Federal electric power generation and delivery
Federal Emergency Management Agency	Disaster relief
Health and Human Services	Disease monitoring and warnings
	Indian health services
	Medicaid
	Medicare
	Organ transplants
	Child care
	Child support enforcement
	Child welfare
	Low income home energy assistance
	Temporary assistance for needy families
	Community development block grants
Housing and Urban Development	Housing loans
	Mortgage insurance
	Section 8 rental assistance
	Public housing
	Bureau of Indian Affairs programs
Interior	
Justice	Federal prisons
	Immigration*
Labor	Unemployment insurance
Office of Personnel Management	Federal employee health benefits
	Federal employee life insurance
	Federal employee retirement benefits
Social Security Administration	Social security benefits
State	Passport applications and processing
Transportation	Air traffic control system
	Maritime search and rescue*
Treasury	Cross-border inspection services*
Veterans Affairs	Veterans' benefits
	Veterans' health care

Source: Office of Management & Budget (OMB) Y2K Guidance

* Organizations responsible for these functions are now part of the U.S. Department of Homeland Security.

The following table prepared by OMB, provides examples that can further assist agencies to identify COOP essential functions. This listing is not all-inclusive. Component agencies and others must further review their missions and responsibilities to develop a broader listing of essential functions.

Table B-4: Component Agencies with High-Impact Program Responsibilities

Department	Component	High-impact programs
Department of Commerce	National Oceanic and Atmospheric Administration	Weather service
	Patent and Trademark Office	Patent and trademark processing
Department of Health and Human Services	Centers for Disease Control and Prevention	Disease monitoring and warning
	Center for Medicare and Medicaid Services	Medicare and Medicaid
	Food and Drug Administration	Organ transplants
	Indian Health Service	Indian health services
Department of Housing and Urban Development	Government National Mortgage Association	Housing loans
	Office of Community Planning and Development	Community development block grants
	Office of Housing	Section 8 rental assistance and mortgage insurance
	Office of Public and Indian Housing	Public housing
Department of Interior	Bureau of Indian Affairs	Indian affairs programs
Department of Transportation	Federal Aviation Administration	Air traffic control system
	U.S. Coast Guard*	Maritime search and rescue
Department of the Treasury	U.S. Customs Service*	Cross-border inspection services
Department of Veterans Affairs	Veterans Benefits Administration	Veterans' benefits

Source: Office of Management & Budget (OMB) Y2K Guidance

* Organizations responsible for these functions are now part of the U.S. Department of Homeland Security.

ANNEX C- DELEGATION OF AUTHORITY

To ensure rapid response to any emergency situation and minimize disruptions requiring COOP implementation, agencies should pre-delegate authorities for making policy determinations and decisions at headquarters, regional, field, satellite, and other agency locations, as appropriate. Delegations of authority specify who is authorized to act on behalf of the agency head or other officials for specified purposes. To the extent possible, individuals should be identified by title or position, not by name. Generally, pre-determined delegations of authority will take effect when normal channels of direction are disrupted and terminate when these channels have been reestablished. To ensure legal sufficiency and clarity, these delegations of authority must:

1. Document the legal authority for officials, including those below agency head, to make key policy decisions during a COOP situation.
2. Identify the programs and administrative authorities needed for effective operations at all agency levels having essential functions.
3. Document the necessary authorities where essential functions may be required to include:
 - a. Delineating the limits of authority and accountability;
 - b. A statement that explicitly outlines the authority of an official to whom authority has been delegated to exercise agency direction, including any exceptions, and their authority to re-delegate functions and activities, as appropriate; and
 - c. The circumstances under which delegated authorities would be exercised and when they would terminate.
4. Ensure that officials who might be expected to assume authorities in a COOP situation are trained to carry out their emergency duties. Training of these officials should be conducted at least annually.

ANNEX D – ORDERS OF SUCCESSION

Agencies are responsible for establishing, promulgating, and maintaining orders of succession to key positions. Succession to office is critical in the event agency leadership is debilitated or incapable of performing their legal authorized duties, roles, and responsibilities. Orders of succession allow for an orderly, and pre-defined, transition of leadership within the organization. Orders of succession are an essential part of an agency's COOP plan and should be of sufficient depth to ensure the agency is able to perform its essential functions while remaining a viable part of the Federal government through any emergency.

As a minimum, orders of succession must:

1. Establish an order of succession to the position of agency head. A designated official serves as acting head of the agency until appointed by the President or otherwise relieved.
 - a. Geographical dispersion, including regional, field, or satellite leadership in the standard agency line of succession is encouraged and ensures roles and responsibilities can transfer in all contingencies.
 - b. Where a suitable field structure exists, appropriate personnel located outside the subject region should be considered in the order of succession.
2. Establish orders of succession to other key agency leadership positions.
 - a. Establish an order of succession to the position of Regional Director or equivalent.
 - b. Establish an order of succession to the position of Field Office Director or equivalent.
 - c. Establish an order of succession to the position of Satellite Office Director or equivalent, etc.
 - d. Establish orders of succession to other agency leadership as necessary.
3. To the extent possible, describe orders of succession by positions or titles, rather than names of individuals. Consider coordinating Orders of Succession with General Counsel for legal sufficiency.
4. Establish the rules and procedures designated officials must follow when facing the issue of succession to office.

5. Include in succession procedures the conditions under which succession will take place; method of notification; and, any temporal, geographical, or organizational limitations of authorities.
6. Include orders of succession in the vital records of the agency and ensure they are available at the alternate facility in the event of COOP activation.
7. Revise orders of succession as necessary, and distribute revised versions promptly as changes occur. Designate responsibility for updating and promulgating orders of succession.
8. Provide briefings to designated successors to the position of agency head, when named, on their responsibilities as successors and on any provisions for their relocation. Designated successors must be provided annual refresher briefings.

The following table can assist agencies in developing their organizational succession plan.

Table D-1: Succession Plan

Official (Title)	Designated Successors (Title)	Conditions	Program Responsibility
	1. 2. 3.		
	1. 2. 3.		
	1. 2. 3.		
	1. 2. 3.		
	1. 2. 3.		

ANNEX E- ALTERNATE OPERATING FACILITIES

All agencies shall designate alternate operating facilities as part of their COOP plans, and prepare their personnel for the possibility of an unannounced relocation to these facilities. Identifying and acquiring alternate operating facilities should, at a minimum, include consideration of the following:

1. Geographical location of the facility.
2. Power, telecommunications and internet grids serving the facility.
3. Performing a risk assessment.
4. Ensuring the availability of necessary logistics and infrastructure so that the organization can continue to perform their essential functions during an emergency from an alternate location.
5. Reducing or mitigating disruptions to relocated or transferred operations.
6. Safety and security of relocated personnel.
7. Achieving a timely and orderly recovery from an emergency and resuming full and normal operations.

PLANNING CONSIDERATIONS:

The following is provided for the identification and preparation of alternate operating facilities for continuity operations:

1. Location of Facilities. Agencies should perform an all-hazard risk assessment for all facility(ies) being considered for COOP use. This all hazards analysis should include identification of all natural hazards that may affect the facility; the potential for the facility to be impacted by technological accidents such as fixed-facility and in-transit releases of hazardous materials; the ability to secure the facility against crime, sabotage, and terrorist attacks; and the capabilities of on-site and/or local first responders. Alternate operating facilities must be located in an area where disruption to the agency's ability to initiate, maintain, and terminate operations is minimized. Maximum use should be made of existing agency local or field infrastructures, and consideration should also be given to other options such as telecommuting locations, work-at-home agreements, virtual offices, and joint or shared facilities. Additionally, decisions concerning alternate operating facility locations should take into consideration the following:
 - a. The ability to be operational as soon as possible with minimal disruption of operations, but in all cases within 12 hours after COOP activation and to sustain operations until normal business operations can resume, which may be up to 30 days.
 - b. The distance from the threat area to any other vulnerable facilities/locations (e.g. hazardous materials/nuclear power plants, or areas subject to natural disaster).

- c. Access to essential resources such as food, water, fuel, medical facilities, and municipal services (e.g. fire, police).
 - d. The accessibility of transportation for associates or a defined transportation plan that describes procedures for a warning/no warning event.
- 2. Construction. Since alternate operating facilities will be located at a sufficient distance from the affected facility and in a relatively low-risk environment, no specific construction requirements are identified. However, an agency's entire alternate facility space should have the ability to run emergency power to allow essential functions and operations to continue in any environment. At a minimum, facilities should be constructed such that they are not uniquely susceptible to natural disaster risk factors (e.g., earthquakes, tornadoes, hurricanes, floods, etc.).
- 3. Memorandum of Agreement (MOA)/Memorandum of Understanding (MOU). If the facility is not owned or leased by the agency, a signed MOA/MOU must be prepared with the owner or occupant of the facility. This MOA/MOU must be reviewed annually. Pre-coordination with the General Services Administration (GSA) to provide assistance in sourcing potential relocation sites is recommended. MOA/MOUs should include the following:
 - a. Time period from notification of requirement to availability of facility for occupancy.
 - b. Space and services to be provided.
 - c. Sole use of allocated space during the period of occupancy.
- 4. Space. Agency alternate facility space requirements should be sized according to the scope of their staffing plan for Personnel within the COOP. Contiguous space is desirable; however, non-contiguous space may be acceptable if adequate communications are in place to ensure effective operations of the relocated agency.
- 5. Billeting. If the alternate facility is located at a distance from the primary site, plans should be developed to address housing for COOP personnel (e.g. billeting within facility, local motels).
- 6. Site Transportation. Transportation resource requirements, if any, should be met at the relocation sites (e.g. buses, automobiles).
- 7. Communications. Communications at the alternate facility is required to be consistent with your agency COOP staffing plan during any event. Communications should be provided in sufficient quantity and mode/media to effectively interface with other agency elements (e.g. regional offices), other agencies, and other government and private sector organizations (including key operations centers) critical to the performance of agency essential functions. Secure/non-secure communications requirements should be incorporated.

8. Security. Alternate facilities must provide physical security that meets all requirements established by annual threat assessments and physical security surveys conducted by the agency's security office, the Federal Protective Service, or a qualified contractor. Required physical security capabilities must be tested/exercised annually and be in place within 12 hours of COOP plan activation. Sufficient personnel should be designated to provide perimeter, access, and internal security functions as required by agency policy. Technologies for access, surveillance, and early warning of intrusion should also be considered as part of an alternate facility physical security program.
9. Life Support. Most life support items should be available from external sources (e.g. food, water, medical services, sanitation, power); however, if not, they must be accessible to the facility in sufficient quantities to sustain 30 days of operations. In addition, unique items such as medical supplies, medical records, or housekeeping supplies should be brought to the facility with the relocated personnel or maintained within the facility.
10. Preparation. After selecting appropriate sites for COOP, pre-positioning of critical resources, coordination with the site facility managers, and agreements between the agency and property owners are necessary to ensure the continued availability of facility space and services. Agencies must have pre-positioned or have detailed site preparation and activation plans in order to achieve full operational capability within 12 hours of notification.
11. Maintenance. Agencies should develop facility maintenance and inspection procedures to ensure that their alternate operating facilities are able to support COOP essential functions and personnel as soon as possible with minimal disruption of operations, but in all cases within 12 hours of COOP activation and for up to 30 days.

THE ACQUISITION PROCESS:

The alternate facility acquisition process consists of, at a minimum, three steps: alternate operating facility requirements identification; candidate alternate operating facilities selection and acquisition; and alternate operating facility reevaluation. All three steps should be taken in consultation with GSA as necessary.

Candidate Alternate Operating Facilities Selection and Acquisition. In this step, an agency should consider any and all possibilities for identifying and obtaining alternate operating facilities. Some of these options are as follows:

1. Existing agency space.
 - a. Remote/offsite training facilities – Facilities may include an agency training facility that is located nearby their normal operating facility, but far enough away to provide for geographical dispersion.
 - b. Regional or Field Offices – Some agencies have a Regional Office or Field Office that could operate as an alternate operating facility.
 - c. Remote headquarters operations – Some agency headquarters are of such size that their operations and facilities extend beyond the limits of their host city. One of these locations could act as an alternate operating facility.

2. Virtual offices.
 - a. Work at Home – Many agencies have programs to allow employees to work from home. This arrangement could be utilized for some COOP personnel to fulfill their essential functions.
 - b. Telecommuting facilities – Several areas of the country have federally funded telecommuting facilities. These facilities may accommodate some COOP personnel on a prearranged basis so that they can fulfill their essential functions.
 - c. Mobile office concept – This concept envisions using such assets as a specially equipped vehicle that can serve as an office and laptop computers that communicate via wireless technology.
 3. MOA/MOU for co-location with another agency. One agency may relocate to another agency's facilities. The relocating agency could occupy available space in the other agency's headquarters, training facility, field office, or other available agency space.
 4. Acquisition of an agency specific alternate operating facility.
 - a. Agency procured and maintained space – For this option, an agency with the authority to procure their own space may do so to meet their alternate operating facilities requirements.
 - b. GSA procured and maintained space – An agency may request GSA to assign federally owned or leased space to accommodate their alternate operating facilities needs.
 5. Another agency procured and maintained space. Some agencies (other than GSA) offer space procurement services that could be used by agencies to fulfill their alternate operating facilities needs.
 6. Participation in a joint-use alternate operating facility.
 - a. Single-use total space, multi-use limited space – Several agencies may pool their resources to acquire space for an alternate operating facility. If a COOP incident occurred, the affected agency would relocate to the facility. However, if the incident affected several or all of the agencies, sufficient space may not be available.
 - b. Multiple agencies, individual spaces – An agency may decide to collocate with another agency, but each would have individually designated space to meet their alternate operating facilities needs.
 - c. Multiple uses (COOP/telecommute/training) – An agency may acquire an alternate operating facility, but ordinarily use it for purposes other than COOP. For instance, an agency may use the facility as a remote telecommuting facility or as a remote training facility.
- Care must be taken to ensure that shared facilities are not over-committed during a COOP situation.
7. Alternate operating facility reevaluation. Identified alternate operating facilities must be periodically reevaluated for suitability and functionality. This is recommended at least

annually and whenever the agency's COOP is reviewed and updated to ensure that alternate operating facilities continue to meet agency needs.

THE REPORTING PROCESS:

As directed by Presidential Decision Directive (PDD) 67, a central database of all alternate operating facilities will be created and maintained by GSA. All agencies are required to identify alternate operating facilities and provide the necessary data concerning the facilities to GSA. To facilitate the reporting process, GSA has developed a form, SF 336: GSA Alternate Facility Reporting Form. Agencies should complete this form and return it to GSA's Emergency Management Office or your regional GSA office, as appropriate.

ANNEX F – INTEROPERABLE COMMUNICATIONS

When identifying communications requirements, agencies should take maximum advantage of the entire spectrum of communications media likely to be available and needed in any emergency situation. These services may include, but are not limited to: secure and non-secure voice, video, fax, and data connectivity; Internet access; and e-mail. Elements of a viable interoperable communications program include:

1. Capability commensurate with an agency's essential functions, including quantity as per the staffing plan within an agency COOP.
2. Ability to communicate with COOP personnel, other agency employees, leadership, and other agency elements, to include bureaus, regions, and field offices.
3. Ability to communicate with the FEMA Operations Center and the Homeland Security Operations Center, other Federal agencies and their COOP sites, and critical customers.
4. Access to data, systems, and services necessary to conduct essential functions and support activities. Agencies are required to review redundant IT equipment countermeasures that provide access to data systems and services to conduct essential functions and support activities.
5. Redundant communications systems for use in COOP implementation.
6. Redundant communications systems available to support COOP operational requirements within 12-hours of COOP activation and sustained for up to 30-days.
7. Interoperability with existing field infrastructures.

To identify required interoperable communications systems, agencies must:

1. Based on their essential functions, determine the communications system requirements necessary to support essential functions.
2. Evaluate potential communications systems that satisfy these requirements. Consider the full spectrum of communications media that may be available during an emergency.
3. If the agency is listed in the COOP Communications Plan, test on a quarterly basis, the agency's COOP communications systems, including the ability to communicate with the FOC, the HSOC, other Federal agencies, and their COOP sites. All other organizations should also validate their internal and external

communications capabilities at their alternate operating facilities quarterly or more frequently as directed.

ANNEX G – VITAL FILES, RECORDS AND DATABASES

The identification, protection, and ready availability of vital records, databases, and hardcopy documents needed to support essential functions under the full spectrum of emergencies are critical elements of a successful COOP plan.

An effective viable vital records program must account for:

1. The official establishment of a vital records program and assignment of program responsibility within the organization that:
 - a. Specifies the purpose and scope of the program;
 - b. Assigns roles and responsibilities;
 - c. Provides for staff training; and
 - d. Requires periodic review and testing of the program.
2. Appropriate medium for accessing vital records. As soon as possible after COOP activation, but in all cases within 12 hours of COOP plan activation, COOP personnel at the alternate operating facility must have access to:
 - a. A local area network (LAN);
 - b. Vital electronic records;
 - c. Critical information systems and data;
 - d. Internal and external email and archives; and
 - e. Vital hard copy records.

In most cases, agencies choose to maintain these records electronically because of the ease of updating the records and copying them at an offsite location. Agencies should strongly consider multiple redundant media for storage of vital records.

3. Maintenance of a complete inventory of records identified under Emergency Operating Records and Legal and Financial Records, along with location and access information. This inventory should be maintained at a number of different sites.

4. Performance of a risk assessment to:
 - a. Identify the risks involved if vital records are retained in their current locations and medium, and the difficulty of reconstituting them if they are destroyed.
 - b. Determine if off site storage is necessary.
 - c. Determine if alternative storage media is advisable.
 - d. Determine if it is necessary to duplicate records to provide a vital records copy.
5. Selection of appropriate protection methods for vital records. This may include dispersal to other agency locations or off-site storage. When determining protection methods, it is important to take into account special media needs. Microforms, paper photographs, and computer disks, tapes and drives all have different protection requirements. Some require equipment to facilitate access.
6. Procedures for routinely updating vital records to ensure that they always contain the most current information.
7. Identification of records recovery experts and vendors to assist with recovery in the event of records damage.
8. Development and maintenance of a vital records plan packet that includes:
 - a. A hard copy or electronic list of key agency personnel and disaster staff with up-to-date telephone numbers.
 - b. A vital records inventory with precise locations of vital records.
 - c. Necessary keys or access codes.
 - d. Alternate operating facility locations.
 - e. Access requirements and lists of sources of equipment necessary to access the records (i.e. this may include hardware and software and microfilm readers, Internet access, and/or dedicated telephone lines).
 - f. Lists of records recovery experts and vendors.
 - g. A copy of the agency's disaster recovery plan (e.g. COOP or Vital Records Recovery Plan).

This packet should be periodically reviewed to ensure that the information is current. A copy should be securely maintained at the agency's alternate operating facilities and other locations where it can be easily accessible to appropriate personnel when needed.

9. Development of a training program for all staff involved in the vital records program. This should include periodic briefings to managers about the vital records program and its relationship to their records and business needs. Staff training should focus on the identification, inventorying, protection, storage, access to, and updating of the vital records.
10. Periodic review of the vital records program to address any new security issues, identify problem areas, update information, and identify additional vital records that may result from new agency programs or functions from organizational changes. The review will provide an opportunity to familiarize staff with all aspects of the vital records program. It would be appropriate to conduct a review of the vital records program in conjunction with COOP exercises.
11. Capabilities for protecting classified and unclassified vital records and databases and providing access to them from the alternate operating facility must be tested semi-annually.

The following table may be useful in identifying and managing vital files, records, and databases.

Table G-1: Vital files, records, databases

Vital File, Record, or Database	Form of Record (e.g., hardcopy, electronic)	Pre-Positioned at Alternate Facility	Hand Carried to Alternate Facility	Storage Location(s)	Maintenance Frequency
		☐	☐		
		☐	☐		
		☐	☐		
		☐	☐		

ANNEX H – HUMAN CAPITAL

Agency Planning and Readiness

Each agency is responsible to design, update, and carry out comprehensive plans to take into account and respond to the threats that its employees are most likely to face. These plans interact with and impact on human capital management. Agency managers should be familiar with the many human capital resources and flexibilities that exist to assist managers and employees in an emergency.

Certain Government wide or agency-specific events, such as:

1. COOP (contingency plans for continuity of operations);
2. OEP (Occupant Emergency Plan); and
3. Dismissals or closures used in emergency situations that prevent most employees from reporting for work may require:
 - a. Designation of emergency employees or special categories of employees (e.g., COOP, emergency, mission-critical, etc., as appropriate);
 - b. Adjustments in work schedules;
 - c. Use of special compensation (pay and leave) tools and flexibilities;
 - d. Temporary staffing arrangements, etc.

Agency managers should:

1. Be fully informed and understand human capital tools, flexibilities, and strategies;
2. Review regularly and update human capital information and resources to assure that the agency's policies remain current and relevant to changing environments or evolving threats;
3. Conduct regular exercises and simulations;
4. Ensure employees have a clear understanding of what they are to do in an emergency;
5. Maintain specific protocols for designating and activating special needs employees; and

6. Develop, review, and update emergency guides as needed.

Please see “*Federal Manager’s/Decision Maker’s Emergency Guide*,” which is posted on the Office of Personnel Management’s (OPM’s) Web site (www.opm.gov).

Also, title 5, United States Code, provides for the general authorities to govern an agency, delegate authorities, and review agency operations:

AGENCY AUTHORITIES, TITLE 5, UNITED STATES CODE	
5 U.S.C. 301. Departmental Regulations.	“The head of an Executive department or military department may prescribe regulations for the government of his department, the conduct of its employees...”
5 U.S.C. 302. Delegation of Authority.	“(b) In addition to the authority to delegate conferred by other law, the head of an agency may delegate to subordinate officials the authority vested in him-- (1) By law to take final action on matters pertaining to the employment, direction, and general administration of personnel under his agency; and...”
5 U.S.C. 305. Systematic agency review of operations	“(b) Under regulations prescribed and administered by the President, each agency shall review systematically the operations of each of its activities, functions, or organization units, on a continuing basis. (c) The purpose of the reviews includes-- (1) Determining the degree of efficiency and economy in the operation of the agency’s activities, functions, or organization units...”

Designation of Emergency Employees and other Special Categories of Employees

Each agency head has the authority and responsibility to identify and designate those personnel that he or she judges to be critical to agency operations in any given emergency situation such as COOP, OEP, dismissal or closure procedures used in emergency situations that prevent employees from reporting for work.

There are no standard definitions or categories in this regard, and agency heads (or their designees, as applicable) are free to make such determinations based on the agency's unique mission requirements and/or circumstances; such designations may even vary according to the particular nature of an exigency. Such designations should be part of an agency’s emergency response/continuity of operations plans and should be communicated in advance to those so designated, so that they can be prepared to support and sustain agency operations in an emergency.

Dismissal or Closure Procedures

Agencies in the Washington, DC, area should follow the “Washington, DC, Area Dismissal or Closure Procedures” in emergency situations that prevent significant

numbers of employees from reporting for work on time or which require agencies to close all or part of their activities. (These procedures are available on OPM's Web site (www.opm.gov) and are updated annually.)

Federal Executive Boards and Federal Executive Associations coordinate similar dismissal or closure procedures in other major metropolitan areas.

OPM and Media Announcements on Government Operating Status

Agency managers and employees should be thoroughly familiar with the current meaning of terms used by OPM and the media to announce the operating status of the Government. The current terms are defined in the "Washington, DC, Area Dismissal or Closure Procedures" which is available on OPM's Web site. Current (2004) terms include:

1. OPEN
2. OPEN under an UNSCHEDULED LEAVE policy
3. OPEN under a DELAYED ARRIVAL policy
4. OPEN under a DELAYED ARRIVAL/UNSCHEDULED LEAVE policy
5. EARLY DISMISSAL
6. CLOSED

Status of Non-Emergency Employees and Non-Special Categories of Employees

In the event of severe hazardous conditions, disruption of public services, or other emergency situations of short duration, employees may be instructed not to report for work.

If an employee is prevented from working because he or she has been instructed by the head of his or her agency or other authorized official not to report for work, the employee normally will be excused from work without loss of pay or charge to leave. Agency management also may wish to consider use of alternative worksites, where appropriate and feasible.

In emergencies, emergency employees and special categories of employees will be activated by the agency to perform assigned duties. Only designated employees participate in training and practice exercises. In both instances, agencies are responsible for managing their other human capital resources, i.e., the employees who are not activated.

1. Agencies must determine if and when it will be appropriate to recall additional employees to work at their normal worksite or at alternative worksites as the emergency continues. Further, the agency must communicate how, and the extent to which, employees are expected to remain in contact with their agencies during any closure situation. Agencies may wish to issue communications and other equipment to certain categories of employees to facilitate contact in these situations.
2. In the event of a prolonged shutdown due to severe or hazardous conditions, disruption of public services, or other emergency situations, an agency may find it necessary to furlough non-emergency employees. Such an action places an employee in a non-duty, non-pay status for the duration of the furlough. If the agency finds that the shutdown may last longer than 1 year or is permanent, the agency would use reduction in force procedures to separate or demote an employee from an excess position.
3. There are no fixed solutions that will automatically apply to all agencies in every emergency. Agency managers should work closely with their Chief Human Capital Officer or Director of Human Resources, as applicable. For Government wide and many other types of emergencies, OPM will likely provide guidance on its Web site (or other means) to agency Chief Human Capital Officers.

Sample Agency Guidelines for Communicating to Employees

1. Establish and disseminate written procedures for dismissal or closure to employees at least annually;
2. Identify employees who **must** report for work under various emergency situations and projected scenarios to continue Government operations and notify these employees in writing that they are so designated;
3. Identify when work may or must be performed at the regular worksite or alternative worksite(s);
4. Establish a procedure for notifying **“non-emergency employees”** or **“non-special categories of employees”** to report for or remain at work when Government operations are disrupted;
5. Determine when an employee’s formal or informal telework agreement may need to be amended when telework employees may be required to continue to work at their alternative worksites on their teleworkday when the agency is closed. At least annually, agencies should remind all teleworkers of this requirement;
6. Notify employees that if they are required to report for work and are not otherwise granted excused absence, they will be charged absence without leave (AWOL) for the period not worked and may potentially be disciplined for the AWOL at the agency’s discretion; and

7. Require managers to be responsible for determining closure, dismissal, and leave policies for employees on shift work and for informing employees of these policies.

Methods of Employee Communications

Employees should be encouraged to familiarize themselves with the procedures that have been put into place at their agency, as well as the means of notification that an agency will use to inform and instruct employees. Activities to support communications with employees include:

1. Convening town hall meetings;
2. Soliciting employee comments and suggestions;
3. Communicating plans and changes, including recurring distribution of emergency guides;
4. Maintaining current contact information on senior executives;
5. Working with unions to support and strengthen communication activities; and
6. Advising employees of support services available through agency Employee Assistance Programs (EAPs).

Employee Awareness of Changes in Building Operations

Management responsibilities with regard to facility operations include:

1. Remaining aware, and encouraging employees to be attentive to suspicious activities;
2. Regular testing of fire and safety public address systems;
3. Assuring availability of supplies in the case of shelter-in-place response to an emergency;
4. Posting clear signage for evacuation routes; and
5. Developing a protocol for safety and security personnel to maintain communications in an emergency.

Pay Flexibilities

Each Federal agency has the authority and responsibility to establish work schedules for its employees within general legal and regulatory guidelines. Most agencies are required

to comply with title 5, United States Code, and OPM's regulations when establishing regularly scheduled administrative workweeks for their employees.

The work schedule for most employees is determined in advance, and temporary periods of extended work hours in emergency situations are usually quite different than the employees' regularly scheduled administrative workweek. Agencies must schedule or reschedule an employee's regularly scheduled administrative workweek so that it corresponds with the employee's actual work requirements for specific days and hours.

1. **Standby Duty.** When employees are required to *remain in a state of readiness to perform work* during an emergency, they may be entitled to overtime pay for standby duty. Usually, an employee is in a standby duty status if, for work-related reasons, the employee is restricted to an agency's work premises (or so close thereto that the employee's time may not be used effectively for his or her own purposes) **and** is required to remain in a state of readiness to perform work.
2. **Compressed Work Schedules.** Agencies may implement a compressed work schedule (CWS) instead of a traditional fixed work schedule (e.g., 8 hours per day, 40 hours per week). For example, if an employee is required to *work* more than 8 hours a day, an agency may implement a fixed schedule that is *compressed*, enabling employees to complete the basic 80-hour biweekly work requirement in fewer than 10 workdays. OPM guidance permits an agency to establish a CWS when necessary for certain periods or seasons of the year. Therefore, an agency could establish a CWS to be used by employees only during an extended emergency. The CWS is established and fixed solely by the agency, and the employee has no flexibility in establishing his or her hours. If an employee is in a bargaining unit, the agency must successfully negotiate a CWS program with the union prior to implementation.
3. **Biweekly Premium Pay Limitation.** A biweekly limitation provides that premium pay cannot be paid which causes the total of basic pay, overtime pay, the dollar value of compensatory time off, night pay, annual premium pay, Sunday premium pay, and holiday premium pay to exceed the **greater** of the **biweekly** rate for (1) GS-15, step 10 (including any applicable special salary rate or locality rate of pay), or (2) the rate for level V of the Executive Schedule. The biweekly premium pay limitation does not apply to wage employees or to Fair Labor Standards Act overtime pay.
4. **Annual Premium Pay Limitation.** In certain emergency or mission critical situations, an agency has the authority, without OPM approval, to apply an annual premium pay cap instead of a biweekly premium pay cap. In this regard, the agency head, or his or her designee, or OPM may determine that an emergency exists.
 - a. For any pay period in which the head of an agency/designee or OPM determines that an emergency exists, the agency *must* apply an annual cap

to certain types of premium pay for employees performing work in connection with an emergency, including work performed in the aftermath of such an emergency.

- b. An “emergency” is defined in 5 CFR 550.103, as a temporary condition posing a direct threat to human life or property, including a forest wildfire.
- c. In addition, agencies *may* approve the use of an annual cap instead of a biweekly cap whenever the agency determines that employees are performing work critical to the mission of the agency as provided in 5 CFR 550.106(b). (When an annual cap is applied, employees may receive premium pay only to the extent that the aggregate of basic pay and premium pay for the calendar year does not exceed the **greater** of the **annual** rate for (1) GS-15, step 10 (including any applicable special salary rate or locality rate of pay), or (2) level V of the Executive Schedule.)

For further information concerning your agency, consult with your agency’s Chief Human Capital Officer, Technical Advisor to the Chief Human Capital Officer, or Director of Human Resources, as applicable.

Also see OPM’s Web site (www.opm.gov) for fact sheets, regulations, and additional information.

Staffing Flexibilities

Agencies may fill emergency or special staffing needs by considering one or more of the following staffing flexibilities:

1. Excepted Appointments (Temporary Emergency Need (Up To 1 Year) and 30-Day Critical Need);
2. Reemploying Annuitants;
3. Reemploying Buyout Recipients;
4. Direct-Hire Authority;
5. Contract with private sector temporary firms for services to meet its emergency needs;
6. Competitive service appointments of 120 days or less without clearing its Career Transition Assistance Plan (CTAP) or the Interagency Career Transition Assistance Plan (ICTAP); and

7. Reemployment Priority List (RPL)

For further information concerning your agency, consult with your agency's Chief Human Capital Officer, Technical Advisor to the Chief Human Capital Officer, or Director of Human Resources, as applicable.

Also see OPM's Web site (www.opm.gov) for fact sheets, regulations, and additional information.

Benefits Issues

Neither details nor extended assignments to an alternate worksite have an impact on an employee's retirement, health insurance, or life insurance benefits. Employees covered under special group provisions of the Civil Service Retirement System or the Federal Employees' Retirement System, such as law enforcement officers or firefighters; continue under the special group provisions while on detail.

Employee Roles and Responsibilities

While agency management is responsible for designing employee status, employees also have an important role in assuring the safety of themselves and teammates in the workplace. Employees should:

1. Become Familiar with agency procedures and the means of notification that an agency will use to inform and instruct employees;
2. Ask questions about the agency procedures and talk to managers about any suggestions which could improve safety;
3. Volunteer to assist in evacuation procedures and other duties during an emergency;
4. Become familiar with agency protocol, including knowledge of garments (arm bands, caps, etc.) worn by floor team leaders, monitors and other volunteers;
5. Create a personal safety kit for emergencies and store it at the workspace. Appropriate items might include—required medication, bottled water, long-sleeved shirt or jacket, and emergency contact numbers;
6. Follow the instructions of designated emergency personnel; and
7. Remain vigilant, and report any suspicious circumstances.

Additional information for employees is available in "*A Federal Employee's Emergency Guide*," which is posted on the Office of Personnel Management's (OPM's) Web site (www.opm.gov).

ANNEX I – TEST, TRAINING AND EXERCISE (TT&E) PROGRAM

Testing, training, and exercising of COOP capabilities is essential to demonstrating, assessing, and improving the ability of agencies to execute their COOP plans. Training familiarizes COOP personnel with the essential functions they may have to perform in an emergency. Tests and exercises serve to assess, validate, or identify for subsequent correction, specific aspects of COOP plans, policies, procedures, systems, and facilities used in response to an emergency situation. Periodic testing also ensures that equipment and procedures are maintained in a constant state of readiness.

Agencies must develop and maintain a COOP test, training and exercise program for conducting and documenting TT&E.

1. The agency test program must include:
 - a. Quarterly testing of COOP alert, notification, and activation procedures;
 - b. Semi-annual testing of plans for the recovery of vital classified and unclassified records, critical information systems, services, and data;
 - c. Quarterly testing of COOP communications capabilities; and,
 - d. Annual testing of primary and backup infrastructure systems and services at alternate operating facilities (e.g., power, water, fuel).
2. The agency training program must include:
 - a. Annual COOP awareness briefing (or other means of orientation) for the entire workforce;
 - b. Annual team training for COOP personnel;
 - c. Annual team training for agency personnel (and host or contractor personnel) assigned to activate, support, and sustain COOP operations at alternate operating facilities;
 - d. Annual exercise that incorporates the deliberate and pre-planned movement of the COOP personnel to an alternate operating facility; and,
 - e. A comprehensive debriefing conducted after each exercise for the participants to identify systemic weakness in plans and procedures and recommend COOP plans revisions.
3. The agency exercise program, conducted annually at a minimum, must require:
 - a. An opportunity for COOP personnel to demonstrate their familiarity with COOP plans and the capability to continue essential functions; and
 - b. The deliberate and pre-planned movement of COOP personnel to an alternate operating facility.
 - c. Communications capabilities and inter- and intra-agency dependencies.

The following table may be useful in developing a training program plan.

Table I-1: Training Program Plan

Program	Method(s)	Audience	Frequency

The following table may be useful in developing an exercise program plan.

Table I-2: Exercise Program Plan

Type	Participants	Frequency	Location

ANNEX J – DEVOLUTION OF CONTROL AND DIRECTION

The full spectrum of threats, including notice and no-notice catastrophic attacks, and all-hazards emergencies has prompted the Federal Executive Branch to review contingency planning scenarios for COOP. The possibility that threats or attacks could render Federal Government operations unavailable, for even the slightest period, is unacceptable, as essential functions must continue. Therefore, the need to address catastrophic possibilities and the concept of devolution is critical to ensure the continuation of essential functions.

Devolution planning supports overall COOP planning and addresses catastrophic or other disasters rendering an agency's leadership and staff unavailable to or incapable of performing its essential functions from either its primary or alternate facility(ies). The COOP devolution option should be developed to address how an agency will identify and transfer its essential functions. At a minimum the plan should:

1. Identify prioritized essential functions and determine necessary resources to facilitate their immediate and seamless transfer to a devolution site;
2. Include a roster identifying fully equipped and trained personnel at the designated devolution site with the authority to perform essential functions and activities when the devolution option of COOP is activated;
3. Identify the likely triggers that would initiate or activate the devolution option;
4. Specify how and when direction and control of agency operations will be transferred to the devolution site;
5. List necessary resources (people, equipment, and materials) to facilitate the ability to perform essential functions at the devolution site;
6. Establish reliable processes and procedures to acquire resources necessary to continue essential functions and sustain operations for extended periods; and
7. Establish capabilities to restore or reconstitute agency authorities to their pre-event status upon termination of devolution.

The devolution site and personnel must be capable of supporting all the COOP essential functions and activities of the devolving organization, as listed in this FPC.

ANNEX K – RECONSTITUTION OPERATIONS

Agencies must identify and outline a plan to return to normal operations once agency heads or their successors determine reconstitution operations can begin to resume normal business operations. Agencies must:

1. Provide an executable plan to transition from COOP status to an efficient normal operations status once a threat or disruption has passed.
2. Coordinate and pre-plan options for reconstitution of an agency regardless of the level of disruption causing implementation of its COOP plan. These options must include movement from the COOP or devolution location to the originating operating facility or a new operating site if necessary.
3. Outline procedures necessary to affect a smooth transition from a relocation site, whether standard COOP or devolution scenario, to a new or restored headquarters facility.

Implementation:

1. Inform all personnel that the threat of or actual emergency no longer exists, and provide instructions for resumption of normal operations.
2. Supervise an orderly return to the normal operating facility or movement to other temporary or permanent operating facility.
3. Verify that all systems, communications, and other required capabilities are available and operational and that the agency(ies) are fully capable of accomplishing all essential functions/operations at the new or restored facility.
4. Agency HQ POC reports status of the relocation to the FEMA Operations Center (FOC) and other points of contact, as necessary.
5. Conduct an after-action review of COOP operations and effectiveness of plans and procedures, identify areas for correction, and develop a remedial action plan as soon as possible after the reconstitution.

ANNEX L- GLOSSARY

Activation – When a COOP plan has been implemented whether in whole or in part.

Agencies – Federal Executive Branch departments, agencies, and independent organizations.

Agency Head – The highest-ranking official of the primary occupant agency or a successor or designee selected by the official.

Alternate facility – A location, other than the normal facility, used to carry out essential functions in a COOP situation.

Automated Data Processing (ADP) equipment – Equipment that performs data processing largely by automatic means.

Collateral damage – Injury to personnel or damage to facilities that are not the primary target of attack.

Consumable office supplies – General supplies that are consumed in office use.

Continuity of Government (COG) – A coordinated effort within each branch of the Federal Government to ensure the capability to fulfill minimum essential responsibilities in a catastrophic emergency to ensure the capacity to maintain an enduring constitutional government.

Continuity of Operations (COOP) – The activities of individual departments and agencies and their sub-components to ensure that their essential functions are performed. This includes plans and procedures that delineate essential functions; specify succession to office and the emergency delegation of authority; provide for the safekeeping of vital records and databases; identify alternate operating facilities; provide for interoperable communications; and validate the capability through tests, training, and exercises.

COOP Event - Any event that causes an Agency or Department to relocate operations to an alternate site to assure continuance of its essential functions.

Critical Infrastructure Protection (CIP) – Risk management actions intended to prevent a threat from attempting to, or succeeding at, destroying or incapacitating critical infrastructures. Critical infrastructures are those systems and assets so vital to the Nation that their incapacity or destruction would have a debilitating impact on national security, national economic security, and/or national public health or safety.

Delegation of authority – Specifies who is authorized to act on behalf of the D/A head and other key officials for specific purposes.

Devolution – The capability to transfer statutory authority and responsibility for essential functions from an agency's primary operating staff and facilities to other employees and facilities, and to sustain that operational capability for an extended period.

Drive-Away Kit: A kit prepared by, and for, an individual who expects to deploy to an alternate location during an emergency. It contains items needed to minimally satisfy personal and professional needs during deployment.

Emergency Coordinator – This is the key senior official appointed within an organizational element or higher who serves as the coordinator for all National Response Plan and Incident Management System COOP related matters.

Emergency Operating Records – Records that support the execution of an agency's essential functions.

Enduring Constitutional Government (ECG) – A cooperative effort among the Executive, Legislative, and Judicial branches of government, coordinated by the President, to preserve the capability to execute constitutional responsibilities in a catastrophic emergency.

ERG Member – Emergency Response Group member. A person assigned responsibility to report to an alternate site, as required, to perform agency essential functions or other COOP related operations.

Essential functions – Functions that enable the Federal government to provide vital services, exercise civil authority, maintain the safety and well being of the general populace, and sustain the industrial/economic base in an emergency.

Essential resources – resources that support the Federal government's ability to provide vital services, exercise civil authority, maintain the safety and well being of the general populace, and sustain the industrial/economic base in an emergency.

Executive Agent – A term used to indicate a delegation of authority by a superior to a subordinate to act on behalf of the superior. An executive agent may be limited to providing only administration and support or coordinating common functions, or it may be delegated authority, direction, and control over specified resources for specified purposes.

Interagency Agreements – A written agreement entered into between agencies that require specific goods or services to be furnished or tasks to be accomplished by one agency in support of the other.

Interoperability – 1. The ability of systems, personnel, or agencies to provide services to and accept services from other systems, personnel, or agencies and to use the services so exchanged to enable them to operate effectively together. 2. The condition achieved among communications-electronic systems or items of communications-electronics equipment when information or services can be exchanged directly and satisfactorily between them and/or their users.

Interoperable communications – Alternate communications that provide the capability to perform essential functions, in conjunction with other agencies, until normal operations can be resumed.

Legal and financial records – Records that are needed to protect the legal and financial rights of the Government and of the persons affected by its actions.

Mission critical data – Information essential to supporting the execution of an agency's essential functions.

Mission critical systems – ADP equipment essential to supporting the execution of an agency's essential functions.

Multi-year strategy and program management plan – A process that ensures the maintenance and continued viability of COOP plans.

Occupant Emergency Plan (OEP) – A short-term emergency response program that establishes procedures for safeguarding lives and property.

Orders of succession – Provisions for the assumption of senior agency offices during an emergency in the event that any of those officials are unavailable to execute their legal duties.

Originating facility – The site of normal, day-to-day operations; the location where the employee usually goes to work.

Reconstitution – The process by which surviving and or replacement agency personnel resume normal agency operations from the original or replacement primary operating facility.

Risk analysis – The identification and assessment of hazards.

Telecommuting locations – Those locations set up with computers and telephones that enable employees to work at a location closer to their house than their main office.

Test, Training, and Exercises (TT&E) – Measures to ensure that an agency's COOP program is capable of supporting the continued execution of its essential functions throughout the duration of a COOP situation.

Virtual offices – A location or environment where an employee performs work through the use of portable information technology and communication packages.

Vital databases – Information systems needed to support essential functions during a COOP situation.

Vital records – Electronic and hardcopy documents, references, and records needed to support essential functions during a COOP situation. The two basic categories of vital records are *emergency operating records* and *legal and financial records*.

Weapons of Mass Destruction (WMD) – Weapons that are capable of a high order of destruction and/or of being used in such a manner as to destroy large numbers of people. Weapons of mass destruction can be high explosives or nuclear, biological, chemical, and radiological weapons.

Work-at-home – When an employee carries out their work duties at their residence rather than their official duty station.